



July 31, 2013

VIA HAND DELIVERY

Robert K. Magovern

Direct Phone 202-463-2539

Direct Fax 202-478-0491

rmagovern@cozen.com

Karen V. Gregory
Secretary
Federal Maritime Commission
800 N. Capital Street, N.W.
Washington, D.C. 20573-0001

Re: SSA Terminals, LLC et al. v. The City of Oakland, Acting by and
Through its Board of Port Commissioners, Docket No. 09-08

Dear Ms. Gregory:

Enclosed for filing are an original and five (5) copies of the parties' Notice of Voluntary Dismissal in the above-referenced proceeding.

An additional copy is enclosed to be stamped "received" and returned to our messenger.

If you have any questions, please do not hesitate to contact the undersigned.

Sincerely,

A handwritten signature in black ink, appearing to read 'R. Magovern', with a long horizontal flourish extending to the right.

Robert K. Magovern

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 09-08

**SSA TERMINALS, LLC
AND
SSA TERMINALS (OAKLAND), LLC**

COMPLAINANTS

v.

**THE CITY OF OAKLAND, ACTING BY AND THROUGH
ITS BOARD OF PORT COMMISSIONERS**

RESPONDENT

VOLUNTARY DISMISSAL

Pursuant to Federal Maritime Commission Rules of Practice, 502.72(a)(1),
Complainants SSA Terminals, LLC and SSA Terminals (Oakland), LLC and Respondent
City of Oakland, acting by and through its Board of Port Commissioners, hereby
voluntarily dismiss the Complaint in the above-captioned proceeding with prejudice, the
parties to bear their own costs and attorneys' fees.

Respectfully submitted,



Marc J. Fink
Anne E. Mickey
Robert K. Magovern
Cozen O'Connor
1627 I Street, NW, Suite 1100
Washington, DC 20006

Attorneys for Complainants



Paul M. Heylman
Nicholas C. Stewart
Saul Ewing LLP
1919 Pennsylvania Ave., NW, Suite 550
Washington, DC 20006

Attorneys for Respondent

Dated: July 31, 2013